

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joshua Richardson	Team: Squad #15	CCRB Case #: 201603250	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 04/11/2016 5:30 PM	Location of Incident: Snyder Avenue and Schenectady Avenue	18 Mo. SOL 10/11/2017	Precinct: 67
Date/Time CV Reported Fri, 04/15/2016 1:09 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 04/15/2016 1:09 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Davinder Singh	16997	958073	067 PCT
2. POM Christophe Nieves	14432	955261	067 PCT
3. POM Michael Romeo	4615	955412	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Davinder Singh	Force: Police Officer Davinder Singh pointed his gun at § 87(2)(b)	A . Exonerated
B . POM Christophe Nieves	Force: Police Officer Christopher Nieves pointed his gun at § 87(2)(b)	B . Exonerated
C . POM Michael Romeo	Force: Police Officer Michael Romeo pointed his gun at § 87(2)(b)	C . Exonerated
D . POM Michael Romeo	Abuse: Police Officer Michael Romeo frisked § 87(2)(b)	D . Substantiated
E . POM Christophe Nieves	Abuse: Police Officer Christopher Nieves frisked § 87(2)(b)	E . Exonerated
F . POM Davinder Singh	Abuse: Police Officer Davinder Singh searched the vehicle in which § 87(2)(b) was an occupant.	F . Substantiated
G . POM Christophe Nieves	Abuse: Police Officer Christopher Nieves searched the vehicle in which § 87(2)(b) was an occupant.	G . Substantiated
H . POM Michael Romeo	Abuse: Police Officer Michael Romeo searched the vehicle in which § 87(2)(b) was an occupant.	H . Substantiated

Case Summary

On April 11, 2016 at approximately 5:30pm, Police Officers Davinder Singh, Christopher Nieves, and Michael Romeo, all of the 67th precinct at the time of the incident, observed § 87(2)(b) driving a vehicle with license plates that did not belong to the vehicle that he was operating. Upon turning on their lights and sirens in an attempt to conduct further investigation, § 87(2)(b) did not stop his vehicle but instead started driving at a high rate of speed, crossed over the double yellow traffic lines, drove into oncoming traffic and drove through a steady red light. Once, § 87(2)(b) stopped PO Singh, PO Nieves, and PO Romeo all exited their vehicle and pointed their guns at § 87(2)(b) (Allegations A, B, and C).

§ 87(2)(b) exited his vehicle, was put in handcuffs, and was frisked by PO Romeo (Allegation D). § 87(2)(b) was then walked to the police vehicle and was frisked a second time by PO Nieves (Allegation E). § 87(2)(b)'s vehicle was then searched by PO Nieves, PO Romeo, and PO Singh (Allegations F, G and H).

§ 87(2)(b) was then issued two summonses by PO Singh; § 87(2)(b) then was able to leave the scene after an officer parked the vehicle for him, and told § 87(2)(b) that he was not able to drive the car until he gets the proper license plates.

This case has no video evidence.

Mediation, Civil and Criminal Histories

- § 87(2)(b) accepted Mediation during his sworn statement on April 20, 2016. However on June 7, 2016 the case was returned to the undersigned for investigation § 87(2)(b)
- On June 23, 2016, a request was made to determine if a Notice of Claim was filed in regards to this incident. Confirmation from the Office of the New York City Comptroller will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the second complaint filed by § 87(2)(b) § 87(2)(g), § 87(2)(b)
- PO Singh has been a member of service for 1 year and this is his first CCRB complaint.
- PO Nieves has been a member of service for 2 years and this is his first CCRB complaint.
- PO Romeo has been a member of service for 2 years this is his first CCRB complaint

Allegations Not Pleaded

- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]

Findings and Recommendations

Allegation A: Force: Police Officer Davinder Singh pointed his gun at § 87(2)(b)

Allegation B: Force: Police Officer Christopher Nieves pointed his gun at § 87(2)(b)

Allegation C: Force: Police Officer Michael Romeo pointed his gun at § 87(2)(b)

It is undisputed that PO Singh, PO Nieves, and PO Romeo pointed their guns at § 87(2)(b) § 87(2)(g)

§ 87(2)(b) stated that on April 11, 2016, as he made a left turn on Schenectady Avenue, he observed the police van directly behind him put on its lights and sirens, and “unfortunately” did not pull over because he “did not know what the officers wanted.” § 87(2)(b) stated he continued to drive and “unfortunately” drove through a red light, and finally stopped at a red light a couple blocks later. § 87(2)(b) stated that the police van stopped in front of his and all three police officers exited their vehicles with their guns pointed at § 87(2)(b) (Board Review 03)

All three police officers corroborated § 87(2)(b) testimony with the following additions: they were following § 87(2)(b) because they all believed § 87(2)(b) to have a license plate on the vehicle that did not belong there; when they turned on their lights and sirens they observed § 87(2)(b)

§ 87(2)(b) to accelerate at a high rate of speed, cross over the double yellow traffic lines, drive into oncoming traffic, and run a steady red light.

PO Romeo stated that he drew his gun and that his partners drew their guns but never articulated that he pointed it at § 87(2)(b) PO Singh and PO Nieves both stated that they all had their guns pointed at § 87(2)(b) § 87(2)(g)

The police officers stated they exited their vehicle with their guns pointed at § 87(2)(b) because they did not know why § 87(2)(b) did not stop and tried to run. They stated this behavior caused them to have raised suspicions and fear for their safety because they believed § 87(2)(b) could have been hiding a weapon inside the vehicle, and they also could not see § 87(2)(b)'s hands (Board Reviews 04, 05, and 06)

When an officer reasonably fears for his safety or that of another, he is allowed broad authority to draw and point his weapon. *PD v. Gliner*, (OATH index 955/00 (2000) Board Review 07)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, and C** be **Exonerated**.

Allegation D: Abuse of Authority: Police Officer Michael Romeo frisked § 87(2)(b)

It is undisputed that PO Romeo frisked § 87(2)(b) § 87(2)(g)

§ 87(2)(b) stated that when he exited the vehicle an officer frisked him on his shoulders, waist and legs.

PO Romeo and PO Nieves corroborated § 87(2)(b)'s testimony in that they both stated PO Romeo conducted an outer pat down of the § 87(2)(b)'s clothing to see if § 87(2)(b) had any weapons on him when he was outside the vehicle.

The Court of Appeals identified four levels of police intrusion and set forth the factors to justify each: (a) approach to request information/requires some objective credible reason for the interference; (b) common law right to inquire (short of forcible seizure)/requires a founded suspicion that criminal activity is afoot; (c) forcible stop and detention (and limited pat-down frisk if there is a suspicion that the person is armed)/requires reasonable suspicion that a particular person has committed , is committing or is about to commit a crime; (d) arrest/requires

probable cause to believe the person committed a crime. *People v. De Bour*, 40 N.Y.2d 210 (1976) (Board Review 08)

PO Romeo did not articulate a specific reason as to why he believed § 87(2)(b) to be armed at the time of the frisk. When asked why he conducted a frisk he gave the same reason as to why he pointed his gun; because § 87(2)(b) did not stop immediately and because he feared for his safety. However, PO Romeo stated that while he approached the vehicle, § 87(2)(b) was not making any movements, and was compliant with police orders. Furthermore, all the officers including PO Romeo stated that they did not observe a bulge on § 87(2)(b)'s person. § 87(2)(g) all of the officers stated that they believed the license plates to be stolen. § 87(2)(g)

It is therefore recommended that **Allegation D** be **Substantiated**.

Allegation E: Abuse of Authority: Police Officer Christopher Nieves frisked § 87(2)(b)

It is undisputed that PO Nieves frisked § 87(2)(b) § 87(2)(g)

PO Nieves stated that when he walked § 87(2)(b) to the police vehicle he also conducted an outer pat down of the clothing for weapons, before placing him inside the police vehicle. PO Nieves stated he did this because it is New York Police Department procedure for a civilian to be frisked before entering them inside a police vehicle.

PO Singh stated he did observe PO Nieves frisk § 87(2)(b) but could not articulate when during the incident this happened. PO Romeo stated he believed PO Nieves to perform a frisk but could not articulate when during the incident this happened.

In *People v. Smith*, 134 A.D.3d 1453 (2015), the Court held that an officer who intended to transport defendant to the police station to charge him with the traffic infractions, was justified in conducting a pat search for weapons before placing defendant in the patrol vehicle” (Board Review 09).

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **Exonerated**.

Allegation F: Force: Police Officer Davinder Singh searched the vehicle in which § 87(2)(b) was an occupant.

Allegation G: Force: Police Officer Christopher Nieves searched the vehicle in which § 87(2)(b) was an occupant.

Allegation H: Force: Police Officer Michael Romeo searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Singh, PO Nieves, and PO Romeo searched § 87(2)(b)'s vehicle. § 87(2)(g)

§ 87(2)(b) stated that while he was handcuffed and seated in the police vehicle each officer took turns searching his vehicle.

All the police officers corroborate § 87(2)(b)'s testimony that they searched the vehicle. They stated they searched the immediate grabbable area of a person that would be seated in the driver's seat of the vehicle and stated that those areas include the front and rear seats, the floors, under the seats and the glove compartment. They all stated that they did this because based on § 87(2)(b) behavior (not stopping immediately and fleeing) and they believed that § 87(2)(b) could be hiding a weapon.

A warrantless search of a vehicle requires probable cause and is only done to protect against the danger that an arrestee may gain access to a weapon or may be able to destroy or conceal critical evidence. *People v. Derrell*, 26 Misc.3d 697(2009) (Board Review 10).

§ 87(2)(g)

[REDACTED]

As such, it is recommended that **Allegations F, G, and H**, and be closed as **Substantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer:

Title/Signature

Print

Date